

GOVERNMENT HACK™

Unit Assessment Book

Unit 6 — Civil Liberties · Teacher Edition

HOW TO USE THIS BOOK

Three parts: (1) Formative Checkpoints — a short check per standard for progress monitoring (MTSS); (2) Unit Summative — two parallel forms (A and B) for pre/post or retakes; (3) Teacher Answer Key + Item Analysis + Reteach.

All items are pulled from the Government Hack question bank. Assessment items are classroom-formative · pre-field-test.

Administering these forms is what generates the response data to CALIBRATE the pre-calibrated items — the first cycle of use closes the loop.

Keys and reteach live in this teacher book only — reproduce the student sections (formative + Form A/B) without the key section.

Contents

Part 1 — Formative Checkpoints (by standard)

A quick DOK-balanced check for each standard. Use for progress monitoring; reteach routing is in the Teacher Key.

GC.23 — The First Amendment in Court

1. In *Tinker v. Des Moines (1969)*, what did the Supreme Court decide about students' free-speech rights? [GC.23 · DOK 2 · pre-field-test]

- A. Schools may ban any student expression that administrators dislike
- B. Students keep their free-speech rights at school unless the expression substantially disrupts learning
- C. The First Amendment does not apply to public-school students
- D. Only teachers, not students, hold free-speech rights at school

GC.24 — The Second Amendment in Court

1. In *District of Columbia v. Heller (2008)*, what did the Supreme Court hold about the Second Amendment? [GC.24 · DOK 2 · pre-field-test]

- A. That only the military may lawfully own weapons
- B. That the amendment applies only to state militias
- C. That states may ban all firearms within their borders
- D. That the Second Amendment protects an individual right to keep and bear arms

GC.25 — Rights of the Accused (4th-8th Amendments)

1. The exclusionary rule, established in *Mapp v. Ohio (1961)*, provides that — [GC.25 · DOK 2 · pre-field-test]

- A. evidence obtained through an illegal search cannot be used against a defendant in court
- B. police may search a home without a warrant in most situations
- C. a suspect must answer every question police ask
- D. criminal trials may be conducted in secret

GC.26 — The 14th Amendment — Equal Protection & Due Process

1. Why is *Brown v. Board of Education (1954)* considered a turning point in interpreting the Equal Protection Clause? [GC.26 · DOK 2 · pre-field-test]

- A. It upheld the 'separate but equal' doctrine from *Plessy v. Ferguson*
- B. It removed the Equal Protection Clause from the 14th Amendment
- C. It ruled that 'separate educational facilities are inherently unequal,' ending lawful school segregation
- D. It applied only to private colleges, not public schools

GC.27 — Rights for the Underserved

1. What does Title IX of the Education Amendments of 1972 prohibit? [GC.27 · DOK 1 · pre-field-test]

- A. All tuition charged by private schools
- B. Discrimination based on sex in education programs that receive federal funds

- C. The teaching of American history in public schools
- D. Voting by citizens under the age of 21

Part 2 — Unit Summative · Form A

DIRECTIONS

Choose the best answer for each question. Assessment items are classroom-formative · pre-field-test.

Name: _____ Class / Period: _____ Date: _____

1. A public high school suspends a student for silently wearing an armband to protest a government policy, and the protest caused no disruption. Based on *Tinker v. Des Moines*, how should a court most likely rule? [GC.23 · DOK 3 · pre-field-test]

- A. For the student, because non-disruptive symbolic speech is protected at school
- B. For the school, because students give up their rights at the schoolhouse gate
- C. For the school, because all forms of student protest are banned
- D. For the student, because the First Amendment allows no limits on speech

2. The principle that a protection in the Bill of Rights is applied to state and local governments through the 14th Amendment is called — [GC.24 · DOK 2 · pre-field-test]

- A. judicial review
- B. symbolic speech
- C. incorporation
- D. original jurisdiction

3. Police arrest a suspect and begin questioning her without telling her she has the right to remain silent and to a lawyer. Based on *Miranda v. Arizona*, what is the most likely consequence? [GC.25 · DOK 3 · pre-field-test]

- A. Her statements are automatically valid because she was under arrest
- B. Her statements may be excluded from trial because she was not warned of her rights
- C. She permanently loses her right to a jury trial
- D. The arrest violates the Second Amendment

4. How can the same Equal Protection Clause have supported segregation in *Plessy v. Ferguson* (1896) yet ended it in *Brown v. Board of Education* (1954)? [GC.26 · DOK 3 · pre-field-test]

- A. Congress rewrote the clause between the two cases
- B. *Plessy* did not actually involve the Equal Protection Clause
- C. The two rulings interpreted different amendments
- D. The Supreme Court reinterpreted the clause's meaning over time

5. How did the Americans with Disabilities Act of 1990 expand rights for underserved groups? [GC.27 · DOK 2 · pre-field-test]

- A. By prohibiting discrimination against people with disabilities and requiring reasonable accommodations
- B. By banning sex discrimination in school athletics
- C. By guaranteeing a lawyer to defendants who cannot afford one
- D. By applying the Second Amendment to the states

Part 3 — Unit Summative · Form B

DIRECTIONS

Choose the best answer for each question. Assessment items are classroom-formative · pre-field-test.

Name: _____ Class / Period: _____ Date: _____

1. Engel v. Vitale (1962) and Lemon v. Kurtzman (1971) both interpreted which part of the First Amendment? [GC.23 · DOK 2 · pre-field-test]

- A. the freedom of the press
- B. the right to peaceably assemble
- C. the right to petition the government
- D. the Establishment Clause separating government and religion

2. The Supreme Court has said the Second Amendment right is 'not unlimited.' What does that mean? [GC.24 · DOK 2 · pre-field-test]

- A. Governments may still regulate who may carry firearms, and where and how
- B. Only the military may lawfully own weapons
- C. States may ban all firearms outright
- D. The amendment does not protect any individual at all

3. The requirement that the state provide a lawyer to a defendant who cannot afford one comes from which Supreme Court case? [GC.25 · DOK 1 · pre-field-test]

- A. Mapp v. Ohio
- B. Gideon v. Wainwright
- C. Miranda v. Arizona
- D. Brown v. Board of Education

4. The 14th Amendment's guarantee that no state may 'deny to any person... the equal protection of the laws' was the constitutional basis for which ruling?

[GC.26 · DOK 2 · pre-field-test]

- A. Schenck v. United States
- B. District of Columbia v. Heller
- C. Brown v. Board of Education
- D. Miranda v. Arizona

5. Why do many scholars today point to Korematsu v. United States (1944) as a cautionary example rather than a model to follow? [GC.27 · DOK 3 · pre-field-test]

- A. It created Title IX and later proved unnecessary
- B. It expanded voting rights too quickly
- C. It ended school segregation before the country was ready
- D. It upheld the wartime incarceration of Japanese Americans, showing how liberty can be sacrificed to claimed security

Part 4 — Teacher Answer Key + Item Analysis + Reteach

READING THE ANALYSIS

Each item shows its standard, DOK, correct key, and TCAP reporting category, plus a reteach move. Distractor-based routing: a wrong choice signals which idea to reteach — pair with the workbook Cornell notes and Guided Support. Assessment items are classroom-formative · pre-field-test.

Form A — key & reteach

Item	Standard	DOK	Key	Reporting cat.	What's Next if missed (reteach)
1	GC.23	3	A	RC-GOV6: Civil Liberties	Revisit The First Amendment in Court — Cornell cues + Guided Support; re-check with the Exit Ticket.
2	GC.24	2	C	RC-GOV6: Civil Liberties	Revisit The Second Amendment in Court — Cornell cues + Guided Support; re-check with the Exit Ticket.
3	GC.25	3	B	RC-GOV6: Civil Liberties	Revisit Rights of the Accused (4th–8th Amendments) — Cornell cues + Guided Support; re-check with the Exit Ticket.
4	GC.26	3	D	RC-GOV6: Civil Liberties	Revisit The 14th Amendment — Equal Protection & Due Process — Cornell cues + Guided Support; re-check with the Exit Ticket.
5	GC.27	2	A	RC-GOV6: Civil Liberties	Revisit Rights for the Underserved — Cornell cues + Guided Support; re-check with the Exit Ticket.

Form B — key & reteach

Item	Standard	DOK	Key	Reporting cat.	What's Next if missed (reteach)
1	GC.23	2	D	RC-GOV6: Civil Liberties	Revisit The First Amendment in Court — Cornell cues + Guided Support; re-check with the Exit Ticket.
2	GC.24	2	A	RC-GOV6: Civil Liberties	Revisit The Second Amendment in Court — Cornell cues + Guided Support; re-check with the Exit Ticket.
3	GC.25	1	B	RC-GOV6: Civil Liberties	Revisit Rights of the Accused (4th–8th Amendments) — Cornell cues + Guided Support; re-check with the Exit Ticket.
4	GC.26	2	C	RC-GOV6: Civil Liberties	Revisit The 14th Amendment — Equal Protection & Due Process — Cornell cues + Guided Support; re-check with the Exit Ticket.
5	GC.27	3	D	RC-GOV6: Civil Liberties	Revisit Rights for the Underserved — Cornell cues + Guided Support; re-check with the Exit Ticket.

Formative Checkpoints — key & reteach

Item	Standard	DOK	Key	Reporting cat.	What's Next if missed (reteach)
1	GC.23	2	B	RC-GOV6: Civil Liberties	Revisit The First Amendment in Court — Cornell cues + Guided Support; re-check with the Exit Ticket.
2	GC.24	2	D	RC-GOV6: Civil Liberties	Revisit The Second Amendment in Court — Cornell cues + Guided Support; re-check with the Exit Ticket.
3	GC.25	2	A	RC-GOV6: Civil Liberties	Revisit Rights of the Accused (4th–8th Amendments) — Cornell cues + Guided Support; re-check with the Exit Ticket.
4	GC.26	2	C	RC-GOV6: Civil Liberties	Revisit The 14th Amendment — Equal Protection & Due Process — Cornell cues + Guided Support; re-check with the Exit Ticket.
5	GC.27	1	B	RC-GOV6: Civil Liberties	Revisit Rights for the Underserved — Cornell cues + Guided Support; re-check with the Exit Ticket.

Part 5 — Psychometric Blueprint (Teacher)

ABOUT THESE NUMBERS

Every item carries a cognitive-rigor classification (Webb's DOK × Bloom's, located on the Hess Cognitive Rigor Matrix) and a pre-calibration IRT 3PL estimate: a = discrimination, b = difficulty, c = pseudo-guessing.

These IRT parameters are DESIGN-TIME ESTIMATES, not empirical calibrations. IRT 3PL parameters are pre-field-test design-time estimates, to be calibrated on field-test data. Assessment items are classroom-formative · pre-field-test.

Distractor codes: PK prior-knowledge · MC misconception · PE partial evidence · NE nearby error · CA causal attribution · AN anachronism · OG overgeneralization.

BANK DISTRIBUTION

DOK: 1: 2 · 2: 9 · 3: 4

Bloom's: Understand: 9 · Remember: 2 · Apply: 2 · Analyze: 1 · Evaluate: 1

Mean discrimination a ≈ 1.353 · Mean difficulty b ≈ 0.16

Field-test-ready items: 15 of 15

Form A — item psychometrics

Item	Std	DOK	Bloom's (Hess cell)	a	b	c	C3	FT?	Distractor codes
1	GC.23	3	Apply × DOK 3	1.6	0.7	0.2	D2	Y	B:MC C:OG D:PE
2	GC.24	2	Understand × DOK 2	1.3	0.3	0.2	D2	Y	A:PK B:PK D:PK
3	GC.25	3	Apply × DOK 3	1.6	0.8	0.2	D2	Y	A:MC C:OG D:PK
4	GC.26	3	Analyze × DOK 3	1.7	1	0.2	D2	Y	A:MC B:NE C:MC
5	GC.27	2	Understand × DOK 2	1.2	0.1	0.2	D2	Y	B:PK C:PK D:PK

Form B — item psychometrics

Item	Std	DOK	Bloom's (Hess cell)	a	b	c	C3	FT?	Distractor codes
1	GC.23	2	Understand × DOK 2	1.3	0.2	0.2	D2	Y	A:PK B:PK C:PK
2	GC.24	2	Understand × DOK 2	1.4	0.4	0.2	D2	Y	B:MC C:OG D:MC
3	GC.25	1	Remember × DOK 1	1	-1.2	0.2	D2	Y	A:NE C:NE D:PK
4	GC.26	2	Understand × DOK 2	1.3	0	0.2	D2	Y	A:PK B:PK D:PK
5	GC.27	3	Evaluate × DOK 3	1.7	1.1	0.2	D3	Y	A:PK B:MC C:PK

Formative — item psychometrics

Item	Std	DOK	Bloom's (Hess cell)	a	b	c	C3	FT?	Distractor codes
1	GC.23	2	Understand ×	1.3	0.1	0.2	D2	Y	A:MC C:MC D:NE

Item	Std	DOK	Bloom's (Hess cell)	a	b	c	C3	FT?	Distractor codes
			DOK 2						
2	GC.24	2	Understand × DOK 2	1.2	0	0.2	D2	Y	A:MC B:NE C:OG
3	GC.25	2	Understand × DOK 2	1.3	-0.1	0.2	D2	Y	B:MC C:PK D:MC
4	GC.26	2	Understand × DOK 2	1.4	0.2	0.2	D2	Y	A:MC B:MC D:NE
5	GC.27	1	Remember × DOK 1	1	-1.2	0.2	D2	Y	A:OG C:MC D:PK

Part 6 — UDL Supports & Remediation (Teacher)

UNIVERSAL DESIGN FOR LEARNING (UDL 3.0) SUPPORTS — APPLIES TO EVERY ITEM

These supports vary the MEANS of access, not the mastery target. They apply to every item on the formative checkpoints and both summative forms.

Representation — CAST 3.0 Rep — key terms glossed (EN/ES); read-aloud on request; large-print/screen-reader friendly

Action & Expression — [MC] respond by selecting/pointing/AT · [open] respond in writing, speech, or a labeled diagram; word processor/speech-to-text available

Engagement — action-oriented feedback via the remediation routing; DOK-tiered challenge

Supports vary the means, not the mastery target — UDL design, not modification. CAST (2024). Universal Design for Learning Guidelines version 3.0.

HOW TO USE THIS SECTION

For each item: if a student misses it, start with the If-missed reteach, then route by the SPECIFIC wrong choice the student picked (each distractor signals a distinct misconception), and escalate through MTSS Tier 2 → Tier 3 if the misconception persists across parallel forms. Assessment items are classroom-formative · pre-field-test.

Form A — UDL & distractor-based remediation

Item 1 — GC.23 · DOK 3

If missed: Revisit “The First Amendment in Court” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

Wrong choice	Signals misconception	Targeted reteach
B	Contradicts Tinker's core holding that students keep their rights.	confront the misconception with a worked counter-example
C	Overgeneralizes; Tinker protects non-disruptive protest, not bans all protest.	test the overgeneralization against a counter-case
D	Uses a partly-true idea (speech is protected) but ignores the 'substantial disruption' limit.	model carrying partial evidence to the correct conclusion

MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

Item 2 — GC.24 · DOK 2

If missed: Revisit “The Second Amendment in Court” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

Wrong choice	Signals misconception	Targeted reteach
A	Judicial review is the power to void laws, not the process of applying rights to states.	clarify the boundary with the confused concept
B	Symbolic speech is a First Amendment concept, not the state-application doctrine.	clarify the boundary with the confused concept
D	Original jurisdiction concerns which court hears a case first.	clarify the boundary with the confused concept

MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

Item 3 — GC.25 · DOK 3

If missed: Revisit “Rights of the Accused (4th–8th Amendments)” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

Wrong choice	Signals misconception	Targeted reteach
A	Contradicts Miranda; being under arrest does not validate unwarned statements.	confront the misconception with a worked counter-example
C	Overgeneralizes a consequence; Miranda affects statements, not the right to trial.	test the overgeneralization against a counter-case
D	Confuses amendments; Miranda involves the 5th Amendment, not the 2nd.	clarify the boundary with the confused concept

MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

Item 4 — GC.26 · DOK 3

If missed: Revisit “The 14th Amendment — Equal Protection & Due Process” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

Wrong choice	Signals misconception	Targeted reteach
A	Misconception that a clause was rewritten; the text stayed the same.	confront the misconception with a worked counter-example
B	Plessy did rest on equal protection, so this is factually wrong.	contrast the near-miss with the precise answer
C	Both cases interpreted the 14th Amendment, not different amendments.	confront the misconception with a worked counter-example

MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15

Wrong choice	Signals misconception	Targeted reteach
		min, organizer + worked example), then re-assess with a parallel item. Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

Item 5 — GC.27 · DOK 2

If missed: Revisit “Rights for the Underserved” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

Wrong choice	Signals misconception	Targeted reteach
B	Describes Title IX, not the ADA.	clarify the boundary with the confused concept
C	Describes Gideon v. Wainwright, not the ADA.	clarify the boundary with the confused concept
D	Describes McDonald v. Chicago, not the ADA.	clarify the boundary with the confused concept

MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

Form B — UDL & distractor-based remediation

Item 1 — GC.23 · DOK 2

If missed: Revisit “The First Amendment in Court” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

Wrong choice	Signals misconception	Targeted reteach
A	Press cases are New York Times v. United States and Miller, not Engel or Lemon.	clarify the boundary with the confused concept
B	Assembly is a different First Amendment freedom not at issue in these cases.	clarify the boundary with the confused concept
C	Petition is a separate freedom; these cases concern religion.	clarify the boundary with the confused concept

MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

Item 2 — GC.24 · DOK 2

If missed: Revisit “The Second Amendment in Court” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

Wrong choice	Signals misconception	Targeted reteach
B	Contradicts Heller's individual-right holding.	confront the misconception with a worked counter-example
C	Overgeneralizes; a total ban conflicts with the recognized right.	test the overgeneralization against a counter-case
D	Contradicts Heller, which found an individual right.	confront the misconception with a worked counter-example

MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

Item 3 — GC.25 · DOK 1

If missed: Revisit “Rights of the Accused (4th–8th Amendments)” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

Wrong choice	Signals misconception	Targeted reteach
A	Mapp established the exclusionary rule, not the right to counsel.	contrast the near-miss with the precise answer
C	Miranda concerns warnings and silence, not appointed counsel.	contrast the near-miss with the precise answer
D	Brown is an equal-protection case, unrelated to right to counsel.	clarify the boundary with the confused concept

MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

Item 4 — GC.26 · DOK 2

If missed: Revisit “The 14th Amendment — Equal Protection & Due Process” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

Wrong choice	Signals misconception	Targeted reteach
A	Schenck rests on the First Amendment, not equal protection.	clarify the boundary with the confused concept
B	Heller rests on the Second Amendment, not equal protection.	clarify the boundary with the confused concept

Wrong choice	Signals misconception	Targeted reteach
D	Miranda rests on the Fifth Amendment, not equal protection.	clarify the boundary with the confused concept

MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

Item 5 — GC.27 · DOK 3

If missed: Revisit “Rights for the Underserved” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

Wrong choice	Signals misconception	Targeted reteach
A	Korematsu had nothing to do with Title IX.	clarify the boundary with the confused concept
B	Korematsu narrowed rights; it did not expand voting rights.	confront the misconception with a worked counter-example
C	Ending segregation was Brown, not Korematsu.	clarify the boundary with the confused concept

MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

Formative Checkpoints — UDL & distractor-based remediation**Item 1 — GC.23 · DOK 2**

If missed: Revisit “The First Amendment in Court” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

Wrong choice	Signals misconception	Targeted reteach
A	Overstates school authority; Tinker limits, not expands, the power to ban expression.	confront the misconception with a worked counter-example
C	Misconception that students have no First Amendment rights; Tinker holds the opposite.	confront the misconception with a worked counter-example
D	Right topic but wrong holding; both students and teachers retain rights under Tinker.	contrast the near-miss with the precise answer

MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.

Wrong choice	Signals misconception	Targeted reteach
		Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

Item 2 — GC.24 · DOK 2

If missed: Revisit “The Second Amendment in Court” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

Wrong choice	Signals misconception	Targeted reteach
A	Misconception that only the military may bear arms; Heller recognized an individual right.	confront the misconception with a worked counter-example
B	The militia-only reading is the interpretation Heller rejected.	contrast the near-miss with the precise answer
C	Overgeneralizes state power; Heller struck down a strict handgun ban.	test the overgeneralization against a counter-case

MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

Item 3 — GC.25 · DOK 2

If missed: Revisit “Rights of the Accused (4th–8th Amendments)” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

Wrong choice	Signals misconception	Targeted reteach
B	Contradicts the 4th Amendment, which the exclusionary rule enforces.	confront the misconception with a worked counter-example
C	Confuses the 4th Amendment rule with the 5th Amendment right to remain silent.	clarify the boundary with the confused concept
D	Misconception unrelated to the exclusionary rule; trials are public under the 6th Amendment.	confront the misconception with a worked counter-example

MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

Item 4 — GC.26 · DOK 2

If missed: Revisit “The 14th Amendment — Equal Protection & Due Process” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

Wrong choice	Signals misconception	Targeted reteach
A	Reverses the ruling; Brown overturned, not upheld, 'separate but equal.'	confront the misconception with a worked counter-example
B	Misconception that a case can delete a constitutional clause.	confront the misconception with a worked counter-example
D	Wrong scope; Brown concerned public schools, not private colleges.	contrast the near-miss with the precise answer

MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

Item 5 — GC.27 · DOK 1

If missed: Revisit “Rights for the Underserved” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

Wrong choice	Signals misconception	Targeted reteach
A	Overgeneralizes; Title IX bars sex discrimination, not tuition.	test the overgeneralization against a counter-case
C	Misconception unrelated to Title IX's actual purpose.	confront the misconception with a worked counter-example
D	Confuses Title IX with the 26th Amendment's voting age.	clarify the boundary with the confused concept

MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.